

CASE NAME: VIRELAS VS. SWEEZEY

***HEARING ON MOTION IN RE: TO COMPEL REQUEST FOR ADMISSIONS**

FILED BY: SWEEZEY, MELISSA K

TENTATIVE RULING:

Defendant Melissa Sweezy moves to compel further responses to her requests for admissions. Plaintiff raised a number of responses, including that it is a repeat of a motion to compel requests for admission that previously was denied by the Commissioner, that defendant did not meet and confer, and that the motion is untimely.

On February 7, 2025, defendant served plaintiff with 56 requests for admission (in question form). On March 8, 2025, plaintiff served verified responses, which included some objections. On May 14, 2025, Defendant filed with the court a motion to compel further responses to requests for admission. Defendant's proof of service, filed June 6, 2025, attests that the motion and supporting papers were served on May 11, 2025. Code of Civil Procedure section 2033.290(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing, the requesting party waives any right to compel further response to the requests for admission." Accordingly, notice of the motion had to be served 45 days from March 8, i.e., April 22, 2025. Defendant does not assert that she was given an extension to file the motion. Accordingly, the **motion is not timely and is denied**.

22. 9:00 AM

CASE NUMBER: MSC22-00243

CASE NAME: VIRELAS VS. SWEEZEY

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY THE COURT SHOULD NOT DISMISS THE CASE PURSUANT TO CCP 438

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why this case should not be dismissed pursuant to Code of Civil Procedure section 438. For the reasons set forth, the Court (a) **grants** judgment on the pleadings as to the complaint on the ground the complaint fails to allege facts sufficient to state a cause of action (Code Civ. Proc. §§ 438(b)(2) and 438(c)(3)(B)(ii)), **with leave for Plaintiff to amend his complaint**; and (b) discharges the order to show cause based on this ruling. Plaintiff shall file his amended complaint and serve defendant **by December 19, 2025**.

The Court hereby sets a further case management conference for March 3, 2026, 8:30 a.m. Plaintiff shall file and serve written notice of the further case management conference on defendant.

Background

Plaintiff Antonio Virelas filed his complaint initiating this action on February 6, 2022. Defendant Melissa Sweezy has answered. The parties are both unrepresented.

Plaintiff filed an issue conference statement on July 7, 2025. On July 25, 2025, the Court held an issue conference at which the parties appeared. The Court considered the complaint and indicated its concerns regarding whether the complaint alleged facts to state a cause of action and support the relief sought. The Court informed the parties that it would issue an order to show cause ("OSC") as to

why the case should not be dismissed and set a briefing schedule and a hearing date of December 4, 2025.

Plaintiff timely filed his briefing in response to the OSC on October 23, 2025, before the October 27, 2025 deadline, and filed a proof of service showing service of the response and proposed first amended complaint on Defendant. Defendant did not file a response to Plaintiff's response to the OSC by the due date of November 10, 2025, or at any time up to the date this tentative ruling was prepared.

Legal Standards Governing Motion for Judgment on the Pleadings

Code of Civil Procedure section 438 permits the Court on its own motion to grant a motion for judgment on the pleadings if the Court finds that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc. §§ 438(b)(2) and 438(c)(3)(B)(ii).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439; *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]").) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438(d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-16.) "If the motion for judgment on the pleadings is granted, leave to amend must be granted unless the defect cannot be cured by amendment." (*Hudson v. County of Los Angeles* (2014) 232 Cal.App.4th 392, 408 [emphasis added, citing *Baughman v. State of California* (1995) 38 Cal.App.4th 182, 187].)

Analysis

A. Summary of Plaintiff's Complaint Allegations

Plaintiff's complaint alleges a single cause of action for breach of an implied agreement. He alleges he and defendant Melissa Sweezey began cohabitating in 2007. Defendant had three children from prior marriages, and in 2008, she and Plaintiff had a daughter. After Defendant obtained a job at Omnivision in 2011, they verbally agreed that Plaintiff would "manage the household" and Defendant would "manage the family finances." He alleges they pooled money to buy a home in 2012, that he performed renovations on the home and devoted most of his time to providing care for their daughter and Defendant's disabled son, and that he became financially dependent on Defendant.

Plaintiff alleges the parties conducted themselves out as a married couple, and they pool their "talents, efforts, and assets. On February 19, 2020, Defendant sought and obtained a domestic violence restraining order against Plaintiff, and pursuant to that order, Plaintiff was removed from their home on March 2, 2020, which Plaintiff alleges was the date Defendant "breached [their] verbal and implied agreement." He alleges shortly after that date, she began living with another man. He alleges she breached their oral and implied contract to cohabituate by "being unfaithful, fabricating domestic violence allegations to end" their relationship and begin a new one with a different partner.

The complaint alleges "legal authority" referring to a "civil partnership" and "rights and obligations of cohabitants act 2010." The legal authority set forth does not appear to be California law or consistent

with California authority governing the relationship and claims Plaintiff is trying to assert.

B. Marvin Relationship and Implied Oral Contract

The elements of a cause of action for breach of contract consist of "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) As to the first element, the existence of a contract, an enforceable contract may be oral and may be implied in fact. (Civ. Code §§ 1619 [contract may be express or implied], 1621 [implied contract] and 1622 [oral contract].)

Plaintiff alleges in the operative complaint that the parties orally and impliedly agreed to cohabitate, pool assets, and divide financial and household duties during the thirteen years they cohabitated. Based on the allegations of the complaint, the "breach" of the agreement alleged in the complaint is Defendant's decision to terminate their relationship and to cease cohabitating with Plaintiff. The complaint does not allege Plaintiff and Defendant were married or registered domestic partners under the Family Code, such that their relationship is governed by California contract law. (*See Marvin v. Marvin* (1976) 18 Cal.3d 660, 665, 668, 674 [plaintiff based her cause of action in contract, stating cohabitating adults are "as competent as any other persons to contract respecting their earnings and property rights," that "they may agree to pool their earnings and to hold all property acquired" in their relationship as under community property law or may agree that their earnings and property acquired with their earnings remain each party's separate property; the Family Law Act does not apply to unmarried partners].)

In response to the OSC, Plaintiff contends he is attempting to allege a claim based on the California Supreme Court's *Marvin v. Marvin* decision. That decision held that unmarried cohabiting couples may enforce express or implied contracts relating to a division of property or support and holds that a court may employ equitable doctrines such as quantum meruit to compensate a homemaking partner for services rendered. The decision also holds that the Family Law Act (Civ. Code, § 4000 et seq.), which includes provisions for the division of marital property, does not apply to unmarried partners.

The complaint as presently pled, however, fails to allege sufficient facts to state a *Marvin* cause of action or a right to relief based on an actionable breach of an oral or implied agreement. As pled, the complaint alleges what the parties agreed to do while they cohabitated, and Plaintiff does not allege that Defendant failed to perform as agreed during the period of their cohabitation by managing their finances and providing financial support by working while the parties continued to cohabitate. As presently alleged, Plaintiff asserts breach based on Defendant's decision to terminate their cohabitation arrangement and begin a new relationship approximately two weeks after she sought and obtained a domestic violence restraining order against Plaintiff. Plaintiff has not cited any law, and the Court is not aware of law, that precludes a party in an intimate relationship from terminating that relationship at will. (*See generally Whorton v. Dillingham* (1988) 202 Cal.App.3d 447, 457.) A contract with no express duration is generally terminable at will with reasonable notice. (*See, e.g., Consolidated Theatres, Inc. v. Theatrical Stage Emp. Union, Local 16* (1968) 69 Cal.2d 713, 727-728.) The complaint does not allege an actionable breach of contract as currently pled.

Perhaps in recognition of the deficiencies in the operative complaint, Plaintiff's response to the OSC includes a proposed first amended complaint which alleges five causes of action, including breach of

oral (express) contract, breach of implied contract, breach of fiduciary duty, quantum meruit, and unjust enrichment. Most of the theories of relief are ones which *Marvin* and subsequent "palimony" decisions have found can be viable depending upon the facts alleged and ultimately proven. (See *Marvin v. Marvin, supra*, 18 Cal.3d at 674-675 [property agreements between cohabitants], and 684-685 [breach of oral or implied promise, quantum meruit]; *Whorton v. Dillingham, supra*, 202 Cal.App.3d at 453-455 [independent consideration of services for agreement to provide support separate from any sexual services, if proven, could support contract claim by cohabitant]; *Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 447-452 [breach of fiduciary duty and quantum meruit].)

The Court makes no determination on this OSC whether the proposed first amended complaint allege sufficient facts to state all of the causes of action pled, but the Court finds the proposed first amended complaint is sufficient to show that if given leave to amend, Plaintiff may be able to state sufficient facts to support one or more causes of action based on the more extensive allegations of the proposed amended complaint. The Court therefore **grants** the judgment on the pleadings as to the pending complaint, **with leave to amend**.

23. 9:00 AM CASE NUMBER: MSC22-00329

CASE NAME: MARTINEZ VS LIMON LOCUST

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURT**

FILED BY:

TENTATIVE RULING:

Plaintiff Maria Vejar Martinez moves for final approval of her class action and PAGA settlement with defendant Limon Locust LLC.

A. Background and Settlement Terms

Defendant operates a restaurant in Walnut Creek. Plaintiff was employed there, though her dates of employment and job description are not given.

The original complaint was filed on February 10, 2022, as a class action. PAGA claims were added by later amendment.

As initially proposed, the settlement created a gross settlement fund of \$140,000. The class representative payment to the plaintiff would be \$10,000. Attorney's fees would be \$46,667 (one-third of the settlement). Litigation costs would not exceed \$12,000. The settlement administrator's costs are estimated at \$10,000. PAGA penalties would be \$20,000, resulting in a payment of \$15,000 to the LWDA. The net amount paid directly to the class members would be about \$46,333, not including distribution of PAGA penalties. The fund is non-reversionary. There are an estimated 270 class members. Based on the estimated class size, the average net payment for each class member is approximately \$172. The individual payments will vary considerably, however, because of the allocation formula prorating payments according to the number of weeks worked during the relevant time. The number of aggrieved employees for PAGA purposes is smaller, because the starting date of the relevant period is later.

The entire settlement amount will be deposited with the settlement administrator within 7 days after the effective date of the settlement.

The proposed settlement would certify a class of all current and former non-exempt employees employed at Defendants' California facilities between February 18, 2018, and now. For PAGA purposes, the period covered by the settlement is February 9, 2021 to now.